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Approved March 25, 1982

Be it enacted by the General Assembly of Virginia:

1. That §§ 56-248.1 and 56-249.4 of the Code of Virginia are amended and reenacted as follows:

§ 56-248.1. Commission to monitor fuel prices and utility fuel purchases; fuel price index.—The Commission shall monitor all fuel purchases, transportation costs, and contracts for such purchases of a utility to ascertain that all feasible economies are being utilized.

In addition, the Commission shall establish a fuel price index in order to compare the prices paid for the various types of fuel by Virginia utilities with the average price of the various types of fuel paid by other public utilities at comparable geographic locations in the market.

Any change in the formula used by a utility to compute its fuel adjustment clause shall receive prior approval by the Commission at a hearing dealing solely with such changes. The Commission shall promulgate the procedure for such a hearing in such a manner as to assure the protection of the utilities' opportunity to purchase fuel economically as well as protecting the interest of the consumer.

§ 56-249.4. How reports shall be filed; reports open to public; rules and regulations.—A. The information filed pursuant to §56-249.3 shall be filed with the Commission in affidavit form within forty-five days following the close of the reference month.

B. All such information and reports filed pursuant to this section and §56-249.3 shall be open to the public and available for inspection. The Commission shall hold quarterly hearings to review and evaluate the information filed pursuant to this section and § 56-249.3 and, thereafter, disallow any increased charges pursuant to an electric utility's fuel adjustment clause that cannot be supported by said information and the testimony filed at this quarterly hearing. In such event the amount disallowed shall be credited to the utility's customers as the Commission may order in the calculation of subsequent charges pursuant to the utility's fuel adjustment clause.

C. The Commission shall promulgate all rules and regulations necessary to implement this section and §56-249.3 and to provide for the participation of all interested parties in the quarterly hearings .

CHAPTER 108

An Act to amend and reenact §§ 15.1-675, 15.1-675.1 and 15.1-683 of the Code of Virginia, and to amend the Code of Virginia by adding a section numbered 15.1-687.3, the amended and added sections relating to county personnel, clerk of county board, payrolls and commission on human rights in certain counties; penalties.

[H 252]

Approved March 25, 1982

Be it enacted by the General Assembly of Virginia:

1. That §§ 15.1-675, 15.1-675.1 and 15.1-683 of the Code of Virginia are amended and reenacted and that the Code of Virginia is amended by adding a section numbered 15.1-687.3 as follows:

§ 15.1-675. Interference by members of county board in appointments and removals of personnel.— Except as to persons appointed by it, Neither the county board nor any of its members shall direct or request in any manner dictate the appointment of any person to or his removal from any office or employment by the county or in any way take part in the appointment of or removal of officers and employees of the county of any county

administrative officers or employees whom the manager or any of his subordinates are empowered to appoint, but the county board may express its views and fully and freely discuss with the manager anything pertaining to appointment and removal of such officers and employees . Except for the purpose purposes of inquiry and investigation , the board and its members shall deal with the administrative services county officers and employees who are subject to the direction and supervision of the manager solely through the county manager , and the heads of departments whom it may be empowered to appoint and neither the board nor any member thereof shall give orders either publicly or privately to any other such county officer or employee. Any member violating the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof shall forfeit his office.

§ 15.1-675.1. Appointment of clerk of county board; powers and duties; obligations and penalties.—The clerk of the county board shall be such qualified person as may be designated by the board. *He shall be compensated in an amount set by the board and may employ such deputies and assistants as the board authorizes.* He shall exercise all the powers conferred and perform all the duties imposed upon such officers by general law and shall be subject to the obligations and penalties imposed by general law. He shall also perform such other duties as may be imposed upon him by the county board.

§ 15.1-683. Certification and payment of payrolls.—The county board by resolution may require the county manager to certify to the treasurer the payroll of the regular employees of the county for the successive payroll periods, and vouchers for the payment of bills for materials and supplies which have been received and for which discounts are allowed. Upon receipt thereof the treasurer shall pay the same as if they had been approved by the county board ; and all such payments shall be certified to the county board at its next meeting for adoption or rejection . No payment shall be made hereunder when at any meeting of the county board a resolution opposing such method of payment has been adopted.

§ 15.1-687.3. Commission on human rights.—The board of supervisors may, by ordinance, establish a local commission on human rights which shall have the following duties:

1. *To promote policies to ensure that all persons be afforded equal opportunity;*
2. *To serve as an agency for receiving, investigating and assisting in the resolution of complaints from citizens of the county regarding discriminatory practices and, with the approval of the board of supervisors, to seek, through appropriate enforcement authorities, prevention of or relief from such practices.*

CHAPTER 109

An Act to amend the Code of Virginia by adding a section numbered 2.1-180.1, granting the State Treasurer power to promulgate regulations relating generally to disposition of state funds.

[H 293]

Approved March 25, 1982

Be it enacted by the General Assembly of Virginia:

1. That the Code of Virginia is amended by adding a section numbered 2.1-180.1 as follows:

§ 2.1-180.1. State Treasurer; regulation procedures for depositing money.—The State Treasurer may promulgate regulations or other directives establishing procedures for depositing moneys in depository banks and for reporting such deposits. Such regulations may address, by way of explanation and not limitation: (i) the form of the required reports; (ii) the frequency of reports and deposits; (iii) the disposition of checks; and (iv) the